

24STCV10683 24STCV10683

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Case Number: 24STCV10683 Hearing Date: October 1, 2026 Dept: 509

Jose Angel Mendoza Hernandez v. Tacos Los Carnales 1, Inc.

MOTION TO COMPEL DEFENSE MEDICAL EXAMINATION

MOVING PARTY: Defendants Tacos Los Carnales 1, Inc. and Martha Patricia Mora

RESPONDING PARTY(S): Plaintiff Jose Angel Mendoza Hernandez

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a personal injury action. Plaintiff Jose Angel Mendoza Hernandez (Plaintiff) brought this action against defendants Tacos Los Carnales 1, Inc. and Martha Patricia Mora (collectively, Defendants) alleging he suffered damages as the result of a slip and fall injury on premises owned by Defendants.

Defendants now seek to compel a defense medical exam. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motion to Compel Defense Medical Examination is GRANTED.

Plaintiff is ordered to sit for a physical examination within 45 days of this order at a time and date agreed upon by both parties.

Any and all requests for sanctions are DENIED.

Defendants are ordered to give notice, unless waived.

DISCUSSION:

Motion to Compel Defense Medical Examination

I. Legal Standard

In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff where: (1) the examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive; and (2) the examination is conducted at a location within 75 miles of the residence of the examinee. (Code Civ. Proc., § 2032.220, subd. (a).) A defendant may make a demand for physical examination without leave of the court after that defendant has been served or has appeared (Code Civ. Proc., § 2032.220, subd. (b)), and the physical examination demanded shall be scheduled for a date at least 30 days after service (Code Civ. Proc., § 2032.220, subd. (d)).

II. Analysis

A. Background

The facts underlying this motion are undisputed. Defendants set Plaintiff's defense medical examination (DME) for 3:30pm on July 14, 2026. Plaintiff appeared for on July 14, 2026, ready to proceed at 3:30pm. The physical examination did not proceed as the Spanish language interpreter failed to appear as the result of a personal emergency and through no fault of either party.

Specifically, "on July 7, 2026, Plaintiff served a Response to Notice of Independent Medical Examination. In that response, Plaintiff expressly agreed to appear for the examination, subject to certain conditions, and advised that he required a Spanish-language interpreter." (Ter-Khachatryan Decl. ¶4.) Then, "Defendants retained a Spanish-language interpreter through The Preferred Interpreting Agency for the July 14, 2026." (Id. at ¶5.) "Despite being retained and confirmed in advance, the interpreter failed to appear for the examination. Dr. Kvitne's office contacted my office at 3:47 pm and advised that no interpreter was present and that the examination could not proceed without one. Plaintiff subsequently left at 4:00 pm and the examination was cancelled. No substantive orthopedic examination was performed." (Id. at ¶8.) "Following the cancellation, the interpreter agency acknowledged that the assigned interpreter failed to appear because of a personal emergency and apologized for the incident." (Id. at ¶9.)

B. This Instant Motion was Given Without Proper Notice

As an initial matter, Plaintiff argues that Defendants' motion was filed and served on September 4, 2026, thereby only giving Plaintiff fourteen Court days' notice of the original hearing date in violation of Code of Civil Procedure, section 1005(b). However, Plaintiff has filed an opposition and does appear prejudiced by the delay. Absent such prejudice, this Court, in its discretion, considers the motion on the merits to promote judicial economy and expedite this dispute considering the approaching trial date.

C. Plaintiff has Not Completed a Physical Examination

In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination. (Code Civ. Proc., § 2032.220, subd. (a).)

Here, there is no dispute that the Defendants demanded a physical examination, and Plaintiff attended the exam at the time and date set. There is no dispute that the physical examination did not proceed because of personal emergency of the Spanish interpreter. Despite the parties' attempts at rescheduling the hearing, no physical examination was rescheduled.

In opposition, Plaintiff argues that he has completed his obligation to sit for a DME per code, by showing up at the doctor's office despite no physical examination actually taking place. The statute states that "any defendant may demand one physical examination." (Code Civ. Proc., § 2032.220, subd. (a), emphasis added.) It would appear entirely in conflict with the intent of the statute for "one physical examination" to include an appointment that could not proceed because of unforeseen circumstances. Indeed, no physical examination has taken place, and Plaintiff is therefore required to sit for a DME. [FN 1]

Accordingly, Defendants' Motion to Compel Defense Medical Examination is GRANTED.

Plaintiff is ordered to sit for a physical examination within 45 days of this order at a time and date agreed upon by both parties.

D. The Second DME Notice is Irrelevant

The Court acknowledges that the second DME served on Plaintiff attempted to schedule the medical exam within the thirty-day notice period. (Code Civ. Pro., § 2032.220, subd. (d).) However, this deficiency is mooted for two reasons. First, this Court is simply ordering the initial July 7, 2026, noticed DME to be completed, not the second DME. Second, the Court is providing time beyond the statutory thirty-day notice for the parties to complete the exam. Any issue of sufficient notice is, therefore, moot.

E. Sanctions

In this motion, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel response and compliance with a demand for a physical examination, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Pro., § 2032.240, subd. (c).)

However, Defendants, as the prevailing party, did not request sanctions in their notice of motion. (See Not. of Mot.) Accordingly, the Court declines to award sanctions. [FN 2] (See Code Civ. Pro., § 2023.040, [any request for sanctions must be contained in the notice of motion or opposition.]

As a result, any and all requests for sanctions are DENIED.

IT IS SO ORDERED.

Dated: October 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Even if this Court was to conclude that the July 14, 2026, appointment is a physical examination, the Court would alternatively grant leave for Defendants to conduct a second physical examination as "good cause" is clearly demonstrated.

FN 2 - If Defendants had, in fact, properly done so, this Court would have likely granted an award of reasonable attorney's fees against Plaintiff's counsel. The opposition to this motion is clearly without "substantial justification." Counsel should have simply agreed to the continued DME being requested without the need for this motion.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.